



Appeal Decision

Site visit made on 25 August 2026

by J Buxton BA(Hons) DipArch ARB RIBA

an Inspector appointed by the Secretary of State

Decision date: 21 September 2026

Appeal Ref: 6011421

**Land Adjacent to Salisbury Cottages, Unnamed Road from Salisbury Street to Salisbury Cottages, Hadfield, Glossop SK13 1NN
Easting (x) 402180, Northing (y) 396115**

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr S Brocklehurst of Mast Property Group against the decision of High Peak Borough Council.
 - The application reference is HPK/2026/0021.
 - The development proposed is proposed detached dwelling.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. During the course of the appeal, a revised National Planning Policy Framework (the Framework) was published on 17 August 2026. I have determined the appeal having regard to the revised Framework. The parties were given the opportunity to comment on the implications of the revised Framework for the appeal; however, no comments were received.
3. The application form was not completed with a full postal address. For completeness I have included the Easting and Northing co-ordinates in the banner above for clarity.

Main Issues

4. The main issues are:-
 - the effect of the proposal on the living conditions of neighbouring occupiers, with particular regard to privacy and overlooking;
 - whether the proposal would provide satisfactory living conditions for future occupiers, with particular regard to private amenity space;
 - whether sufficient information has been provided to demonstrate compliance with biodiversity net gain requirements; and
 - the effect of the proposal on the character and appearance of the surrounding area.

Reasons

Living conditions of neighbouring properties

5. The appeal site forms part of the rear curtilage of Nos 124-126 Station Road (Nos 124-126) and comprises a sloping parcel of land behind the existing frontage development along Station Road and Salisbury Lane, it is accessed via a lane from Salisbury Street. Development in the immediate area is predominantly residential accommodation with a mix of building types and architectural styles. This includes a number of existing dwellings fronting onto the lane on the opposite side of the road from the appeal site. Notwithstanding this, the prevailing pattern of development is characterised by dwellings that generally front directly onto the surrounding streets and lane, with the appeal site forming part of the rear garden areas associated with those properties.
6. The appeal scheme proposes a detached dwelling within a rear garden area with associated parking spaces to the front and a private rear garden. Given the variance in ground levels in the area, the effect of the proposal on the living conditions of neighbouring occupiers, particularly in relation to privacy and overlooking, requires careful consideration.
7. The elevated relationship between the site and surrounding residential properties was readily apparent during my site visit and is clearly reflected in the submitted plans and sectional drawings. Consequently, my assessment is informed not only by physical separation distances but also by the site's topography, the relative positioning of surrounding properties and the opportunities for direct and oblique views that would arise from the proposed siting and layout. Based on the evidence before me and my observations on site, the site's higher position relative to neighbouring properties would increase the opportunities for overlooking beyond those typically associated with the separation distances involved.
8. In relation to Nos 124-126, a 2-metre boundary fence is proposed. Whilst this may assist in limiting views at ground-floor level, its effectiveness would be diminished by the difference in ground levels between the appeal site and neighbouring properties. Consequently, it would not prevent views from the proposed dwelling towards neighbouring gardens and habitable room windows. As such, the proposed screening would not overcome the harmful overlooking and loss of privacy that would arise.
9. In addition, the side boundary with Nos 28-30 Salisbury Street (Nos 28-30) shares a direct relationship with neighbouring rear amenity areas. Although a 2-metre boundary fence is also proposed in this location, the site's sloping topography and the elevated position of the dwelling would limit its effectiveness as a privacy screen. In particular, views from the first-floor rear windows towards neighbouring gardens would remain readily perceptible, even at an oblique angle.
10. Drawing these matters together, I find that the proposal would result in an unacceptable degree of overlooking and loss of privacy for occupiers of neighbouring properties. The proposed boundary treatment would not overcome the adverse effects arising from the elevated siting of the dwelling, the site's topography and the resulting relationship with neighbouring properties. As such, the proposal would conflict with Policy EQ6 of the High Peak Local Plan 2016 (HPLP), which seeks to secure a high standard of amenity for existing occupiers. For the same reasons, it would also conflict with Policy L2(1)(d)(ii) of the Framework, which requires

development of this nature to maintain living standards for neighbours, and Policy DP3 of the Framework, which seeks to secure well-designed places.

Living conditions of future occupiers

11. The private amenity area for the appeal proposal would be positioned within a relatively confined space surrounded by existing residential development occupying higher and lower ground. As a result, it would be subject to a significant degree of actual and perceived overlooking from neighbouring properties. Whilst some degree of overlooking is inevitable within residential areas, the constrained nature of the site, coupled with the pronounced level differences, would result in an outdoor space with a limited sense of privacy and seclusion. Consequently, the proposed garden would fail to provide the quality of private amenity reasonably expected to serve a dwelling.
12. I therefore conclude that the proposal would fail to provide satisfactory living conditions for future occupiers. Owing to the constrained nature of the site and the pronounced differences in ground levels, the proposed garden would lack a reasonable degree of privacy and seclusion. As such, the proposal would conflict with Policy EQ6 of the HPLP, which seeks to secure a high standard of amenity for future occupiers. For the same reasons, it would also conflict with Policy L2(1)(d)(ii) of the Framework, which requires acceptable living standards for residents and neighbours, and Policy DP3 of the Framework, which seeks to secure well-designed places.

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13. The appellant contends that the site is exempt from biodiversity net gain requirements because it comprises hardstanding. However, whilst parts of the site contain areas of hard surface, the evidence before me, including site photographs, indicates that a material proportion of the site comprises modified grassland. This was also evident during my site visit.
14. No biodiversity metric, habitat assessment or other ecological evidence has been submitted to establish the site's baseline biodiversity value or demonstrate that the statutory biodiversity gain objective would be achieved. Nor has sufficient evidence been provided to substantiate the claimed exemption from biodiversity net gain requirements. Furthermore, no mechanism has been identified to secure and manage any biodiversity enhancements for the required period. In the absence of this information, I cannot be satisfied that the proposal would meet the statutory biodiversity gain requirements. Consequently, the proposal would conflict with Policies S1 and EQ5 of the HPLP, which seek to conserve and enhance biodiversity and ensure that ecological impacts are appropriately addressed.

Character and appearance

15. The appeal site lies within the settlement boundary of Hadfield. Policy EQ6 of the HPLP seeks high quality development that respects site characteristics and local distinctiveness. The proposal would provide an additional dwelling within an existing residential area and make effective use of an existing residential plot.
16. The proposed dwelling would be positioned behind the existing frontage development on Station Road and Salisbury Street. Whilst it would be visible from the adjoining lane, it would be largely screened from the principal street frontage. Furthermore, whilst the site occupies sloping ground and the resulting building form would be

influenced by those constraints, the surrounding area displays a variety of dwelling types and architectural styles.

17. I acknowledge that the proposal would not fully reflect the prevailing pattern of development in the area, which is generally characterised by frontage development. Nevertheless, the dwelling would be located behind existing development and would be experienced principally within the lane itself rather than the wider street scene. Taking these matters into account, I find that any adverse effect on the character and appearance of the area would be limited.
18. Consequently, I find that the proposal would not result in conflict with Policy EQ6 of the HPLP insofar as it relates to character and appearance. Furthermore, having regard to the limited visibility of the dwelling from the principal street frontage, I find no conflict with Policy L2(1)(d)(i) or Policy DP3 of the Framework.

Other Matters

19. I have had regard to the appellant's reliance on No 19 Curtis Grove and the planning permission granted in 2006. However, that development relates to another site, was assessed against a different policy context, and has a distinct spatial relationship with surrounding buildings. It also has a different relationship with neighbouring occupiers and therefore does not provide a directly comparable example in respect of the effect of living conditions. As such, it does not demonstrate an established pattern of similar development that would justify the proposal before me. It therefore carries limited weight in my assessment.
20. It is acknowledged that the proposed scheme seeks to resolve concerns raised in relation to a previous proposal that was refused under reference HPK/2018/0353. Nonetheless, I have reached my conclusions on the basis of the evidence before me and my assessment of the appeal proposal against the development plan and other material considerations.

Planning Balance

21. The proposal would provide an additional dwelling within the settlement boundary of Hadfield. Furthermore, it would make effective use of an existing residential plot. Consequently, the proposal attracts support in principle from Policies S4 and L3 of the Framework. These are benefits to which Policy L2(1)(d) requires substantial weight to be given.
22. However, whilst I have found no unacceptable harm to the character and appearance of the area, I have found that the proposal would fail to provide acceptable living conditions for neighbouring occupiers and future residents. In particular, the proposal would result in unacceptable overlooking of neighbouring properties and would fail to provide future occupiers with a reasonably private and functional outdoor space.
23. Consequently, I have found conflict with Policy EQ6 of the HPLP. For the same reasons, the proposal would also conflict with Policy L2(1)(d)(ii) and Policy DP3 of the Framework.
24. In addition, insufficient information has been provided to demonstrate compliance with biodiversity net gain requirements. As a result, I have found conflict with Policies S1 and EQ5 of the HPLP.

25. Taking all matters into account, I have given substantial weight to the benefits arising from the provision of an additional dwelling and the effective use of land, as required by Policies S4, L3 and L2(1)(d) of the Framework. Nevertheless, I attach greater weight to the identified conflict with the development plan, in relation to the failure of the scheme to provide acceptable living standards for residents and neighbours in regard to privacy and external amenity space as well as the absence of sufficient information regarding biodiversity net gain. The proposal would therefore conflict with the development plan when read as a whole, including Policies S1, EQ5 and EQ6 of the HPLP. It would also conflict with the Framework when read as a whole, including Policies L2(1)(d)(ii) and DP3.
26. In the final balance, I find that the material considerations in favour of the proposal are not of sufficient weight to indicate that a decision should be made other than in accordance with the development plan. Accordingly, the support provided by Policies S4, L3 and L2(1)(d) does not indicate that planning permission should be granted in this instance.

Conclusion

27. For the reasons given above the appeal should be dismissed.

J Buxton

INSPECTOR